



POLICE DEPARTMENT

September 2, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202402470 (Incident Date: March 11, 2024) regarding Police Officer Richard Brown, Tax No. 973270 (PODS Case No. C-034969)

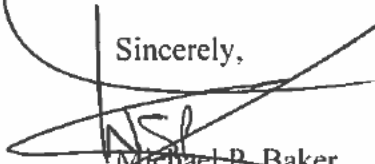
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202402470, pertaining to Police Officer Richard Brown. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, Officer Brown has two substantiated allegations – for wrongfully using force and being discourteous to an individual that eventually received a summons for failing to disperse. The force used was de minimis and there were no injuries. After reviewing the evidence and considering the totality of the circumstances, the Police Commissioner finds that a Schedule "B" Command Discipline is more appropriate to address the alleged misconduct rather than Charges and Specifications. Officer Brown has no formal disciplinary history, no prior substantiated CCRB cases, and has been rated as "Exceptional" on his most recent annual evaluation.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days for the substantiated allegations.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 5, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202402470 (Incident Date: March 11, 2024) regarding Police Officer Richard Brown, Tax No. 973270 (PODS Case No. C-034598)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated September 2, 2025 (hereinafter “Deputy Chief Baker’s Letter” or the “Letter”), informing the Civilian Complaint Review Board (hereinafter the “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this disciplinary complaint and issue a Schedule “B” Command Discipline with the forfeiture of five (5) vacation day for Specifications One (1) and Two (2).

Pursuant to Paragraph 2 of the Memorandum of Understanding between the CCRB and the New York City Police Department (hereinafter the “NYPD” or the “Department”), dated April 2, 2012, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker’s Letter agrees with the CCRB’s substantiation of two (2) allegations against Officer Brown for deploying discourteous language and for wrongfully using force against Complainant/Victim § 87(2)(b) (“§ 87(2)(b)”). Nevertheless, citing Officer Brown’s recent annual evaluation rating of “Exceptional” and lack of disciplinary history with either with the Department or the CCRB, the Letter concludes that the substantiated allegations of police misconduct against Officer Brown would be best resolved within the Department rather than via the filing of Charges and Specifications. The CCRB respectfully disagrees with this assessment.

The Letter does not dispute that Officer Brown spoke discourteously to § 87(2)(b) by twice telling him to “get the fuck out of here,” and wrongfully used force by twice pushing § 87(2)(b) all without police necessity. The CCRB submits that, notwithstanding the positive factors cited in the Letter, Officer Brown’s arbitrary disregard for the Patrol Guide’s directive that members of service shall not engage in conduct prejudicial to the good order, efficiency, or discipline of the NYPD seriously served to undermine community trust in NYPD policing. Filing Charges and Specifications—a process that promotes public accountability and civic transparency—is the superior process for strengthening the community trust Officer Brown weakened when he chose to deploy gratuitous discourtesy and force while policing.

Based upon the foregoing, the CCRB respectfully requests that the NYPD serves Charges and Specifications upon Officer Brown.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor

NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 8, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202402470 (Incident Date: March 11, 2024) regarding Police Officer Richard Brown, Tax No. 973270 (PODS Case No. C-034969)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 5, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Richard Brown, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Brown for the reasons expressed in my September 2, 2025, letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days for the substantiated allegations.

Sincerely,

Th *NSP*
Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office